DEPARTMENTAL GENERAL ORDER

OLIVETTE POLICE DEPARTMENT
OFFICE OF THE CHIEF OF POLICE

Index as:

Search

Seizure

SEARCH AND SEIZURE

I. PURPOSE

To provide instruction and guidelines relative to officers conducting searches and seizures with or without the authority of a warrant.

II. POLICY

It is the policy of the Olivette Police Department that all searches and seizures are conducted within the parameters established by statutes, court decisions and Department training. To that end, the following procedures are hereby established.

III. DEFINITIONS

Search Warrant: A search warrant is a written order of a court commanding the search of a person, place or thing and the seizure, or photographing or copying, of property found thereon or therein. A search warrant may be issued by any judge of a court having original jurisdiction of criminal offenses within the territorial jurisdiction where the person, place, or movable thing to be searched is located at the time of the making of the application. A search warrant specifically designates a particular person, place or thing to be searched, and describes the items sought in the search. When searching for evidence or contraband pursuant to a search warrant, an officer may not search a place or thing where such sought after articles could not possibly be hidden.

IV. GENERAL

The Fourth Amendment to the United States Constitution protects the right of people from unreasonable searches and seizures. Therefore, officers must obtain a warrant based on probable cause prior to making any search or seizure, with a few exceptions. The major exceptions are;

1. Searches made with valid consent.

2. Searches made under emergency conditions or exigent circumstances.

3. Searches incident to a valid arrest.

4. Automobile searches made under certain conditions (exigency, mobile, etc.).

5. Seizure of evidence or contraband in plain view or by plain touch.

V. PROCEDURES

A. In order to ensure compliance with current statute and federal regulations, this Department has adopted procedures for searches & seizures without a warrant. The following guidelines have been established for search and seizure without a warrant to cover the following situations:

1. Search by consent:

a. Law enforcement officers may undertake warrantless searches when the person in control of the area or object has legal standing to consent to the search.

b. In a consent search, neither probable cause nor a search warrant is required, but when using evidence obtained through such a search, the burden of proving consent becomes the responsibility of the prosecution.

c. Officers employed by the Olivette Police Department are permitted to make physical warrantless arrests while acting within the scope of their duties, only if "probable cause" exists. Probable cause is the reasonable ground to suspect that a person has committed or is committing a crime or that a place contains specific items connected with a crime. Under the Fourth Amendment, probable cause which amounts to more than a bare suspicion but less than evidence that would justify a conviction, must be shown before an arrest warrant or search warrant may be issued.

2. Stop and frisk of an individual under circumstances where the officer has reasons that can be articulated for fear of their safety:

a. *Terry v Ohio*, 392 U.S. l (1968) was a landmark decision by the United States Supreme **Court which held that the Fourth Amendment prohibition on unreasonable searches and seizures** is not violated when a police officer stops a suspect on the street and frisks him or her without probable cause to arrest, if the police officer observes unusual conduct which leads him/her to reasonably conclude, based on his/her experience, that the person (1) has committed, is committing, or is about to commit a crime; and (2) that person "may be armed and presently dangerous."

For their own protection, police may perform a carefully limited surface search of the person's outer clothing for weapons if they have reasonable suspicion that the person stopped is armed and presently dangerous. This reasonable suspicion must be based on "specific and articulable facts" and not merely upon an officer's hunch. This permitted police action has subsequently been referred to in short as a "stop and frisk" or simply a *"Terry frisk"*. The *Terry* standard was later extended to temporary detentions of persons in vehicles, known as traffic stops; see *Terry stop* for a summary of subsequent jurisprudence.

The rationale behind the Supreme Court decision revolves around the understanding that, as the opinion notes, "The rule of excluding evidence seized in violation of the Fourth Amendment has its limitations." The meaning of the rule is to protect persons from unreasonable searches and seizures aimed at *gathering evidence,* not searches and seizures for other *purposes* (like prevention of crime or personal protection of police officers).

b. Courts will decide the reasonableness of suspicion on a case-by-case basis. An officer may detain (investigative detention or stop) an individual without probable cause to arrest if the officer has reasonable grounds, based on specific facts, clearly expressed, that the detention was necessary in the interests of crime detection and prevention.

c. Frisk is used to describe the precaution of running the hands quickly up and down and around a person's clothing to discover possession of a weapon. Courts have justified the procedure, generally, as a precautionary measure for the purpose of discovering weapons which might pose a threat to the officer's safety while questioning a person under investigation.

3. Search of a motor vehicle:

a. The "Carroll Doctrine" (Carroll v United States) states that warrantless searches of vehicles were permissible where reasonable suspicion of illegal action existed.

b. Incident to a lawful arrest of an occupant, motor vehicles and other conveyances may be searched without a search warrant under the following guidelines;

1) Officers may search the passenger compartment of a vehicle incident to arrest, if that search is conducted at the time of arrest and the arrestee is unsecured and within reaching distance of the passenger compartment of the vehicle at the time of the search. Once a driver and passengers have been secured, other justification must be used to search the interior of the vehicle.

2) Officers may search a vehicle incident to arrest after the arrestee is secured and away from the vehicle, if there is probable cause that evidence related to the offense for which the suspect is being arrested is in the vehicle.

3) Officers may continue to conduct those searches of vehicles, which do not fall under "incident to arrest" situations (i.e. consent, plain view, motor vehicle exception (probable cause), canine sniffs and inventories.

4) If the vehicle has no connection with the offense, the search should be limited to the entire passenger compartment and all open or closed containers therein. Locked containers located within the passenger compartment should not be searched without a warrant, except in emergency situations.

5) The trunk of a vehicle cannot be searched solely for the purpose of an in-custody incident to a lawful arrest incident. If probable cause exists for a specific item that is believed to be located in the trunk of the vehicle, the trunk may be opened and searched without a warrant because of the mobility of the vehicle. If a locked container is found and probable cause exists to search it, a warrant should be obtained.

6) Vehicles that are not subject to a search under an incident to a lawful arrest may be covered under exigent circumstances or the automobile exception to the warrant requirement.

7) Mobility of motor vehicles often constitutes exigent circumstances authorizing a warrantless search.

8) To search a vehicle under exigent circumstances, an officer must have probable cause to believe that it contains seizable items.

9) If probable cause exists to search a vehicle for contraband located in an unknown location, the vehicle may be searched relative to the size of the contraband. All open and closed containers may be searched without a warrant.

10) If the officer has probable cause to believe that a specific container contains contraband and the officer is confident that the container has not been tampered with since being placed inside that particular vehicle, then the officer should obtain a search warrant before searching that container.

11) Inventory searches of seized vehicles

    a. Police officers with custody of a lawfully impounded vehicle do not need a warrant or the owner's consent

before doing a routine inventory.

4. At the scene of a crime:

    a. A valid search warrant is necessary to search the scene of a crime unless the person who is legally in charge of the property is incapacitated or gives consent.

5. Exigent circumstances, as where the public safety is endangered:

    a. Exigent circumstances are a sufficient reason to perform a search without a valid warrant to ensure the safety of the public (e.g., victim of a violent crime, sick or injured individual).

6. Plain View:

    a. An object in plain view of an officer, who has the right to be at a location to have that view, can provide probable cause for a seizure.

    b. It is not a search to observe that which is in the open and visible in either daylight or artificial light.

    c. It is not a search when lawful entry has been made into a residence and a contraband article is exposed to view.

    d. It is not a search for an officer to peer through the window of a detained vehicle (provided the officer's head remains outside the vehicle).

7. Other situations authorized by the state and federal constitutional provisions:

    a. "Chimel v California" states that a search incident to a lawful arrest in a home must be limited to the area into which an arrestee might reach in order to grab a weapon or other evidentiary items.

B. Missouri State Statute 542.271: Warrant may issue to search and seize, certain persons and items, or to copy, photograph or record:

1. Missouri State Statute 542.271 states: "A warrant may be issued to search and seize and photograph, copy or record any of the following:"

    a. Property, article, material or substance that constitutes evidence of the commission of a criminal offense, or,

    b. Property which has been stolen or acquired in any other manner declared an offense by chapters 569 to 570, RSMo; or

c. Property owned by any person furnishing public communications services to the general public subject to the regulations of the public service commission if such person has failed to remove the property within a reasonable time after receipt of a written notice from a peace officer stating that such property is being used as an instrumentality in the commission of an offense; or

d. Property for which possession is an offense under the law of this state; or

e. Property for which seizure is authorized or directed by any statute of this state; or

f. Property which has been used by the owner or used with his/her acquiescence or consent as a raw material or as an instrument to manufacture or produce anything for which possession is an offense under the laws of this state.

1) A warrant may be issued to search for and rescue a kidnapped person.

2) A warrant may be issued to search for any person for whom a valid felony arrest warrant is outstanding.

3) A warrant may be issued to search for and seize any deceased human fetus or corpse, or part thereof.

4) The provisions of section 542.261 to 542.296, searches and seizures, and section 542.301, disposition of unclaimed seized property, shall prevail over any rules and regulations promulgated by any state governmental agency, commission or board to the contrary notwithstanding.

C. Missouri State Statute 542.276: Who may apply for search warrant-contents of application, affidavit – where filed, hearing – contents of warrant – who may execute, return, when and how made – warrant deemed invalid, when:

1. Any peace officer or prosecuting attorney may make application under section 542.271 for the issuance of a search warrant.

a. The application shall:

1) Be in writing;

2) State the time and date of the making of the application.

3) Identify the property, article, material, substance or person which is to be searched for and seized, in sufficient detail and particularity that the officer executing the warrant can readily ascertain whom or what he is

to search:

- State facts sufficient to show probable cause for the issuance of a search warrant;
- Be verified by the oath or affirmation of the applicant;
- Be filed in the proper court;
- Be signed by the prosecuting attorney of the county where the search is to take place, or his/her designated assistant.

b. The search warrant shall:

1) Be in writing and in the name of the State of Missouri;

2) Be directed to any peace officer in the state;

3) State the time and date the warrant is issued;

4) Identify the property, article, material, substance or person which is to be searched for and seized, in sufficient detail, material, substance, or person found thereon or therein be seized or photographed or copied and be returned, or the photograph or copy be brought, within ten days after filing of the application, to the judge who issued the warrant, to be dealt with according to the law.

5) Be signed by the judge, with his/her title of office indicated.

c. A search warrant issued under this section may be executed only by a peace officer. The warrant shall be executed by conducting the search and seizure commanded.

d. A search warrant shall be executed as soon as practicable and shall expire if it is not executed and the return made within ten days after the date of the making of the application.

e. After execution of the search warrant, the warrant with a return thereon, signed by the officer making the search, shall be delivered to the judge who issued the warrant. The return shall show the date and manner of execution, what was seized, and the name of the possessor and of the owner, when he is not the same person, if known. The return shall be accompanied by a copy of the itemized receipt required by subsection 6, of section 542.291. The judge or clerk shall, upon request, deliver a copy of such receipt to the person from whose possession the property was taken and to the applicant for the warrant.

f. A search warrant shall be deemed invalid if:

1) It was not issued by a judge; or

2) It was issued without a written application having been filed and verified; or

3) It was issued without probable cause; or

4) It was not issued in the proper county; or

5) It does not describe the person, place, or thing to be searched or the property, article, material, substance, or person to be seized with sufficient certainty; or

6) It is not signed by the judge who issued it; or

7) It was not executed within the time prescribed by law or the warrant.

D. Revised Missouri State Statute 542.286 – Warrant to be executed within territorial jurisdiction, exception:

1. A warrant to search a person or any movable thing may be executed in any part of the state where the person or thing is found if, subsequent to the filing of the application, the person or thing moves or is taken out of the territorial jurisdiction of the judge issuing the warrant.

2. All other search warrants shall be executed within the territorial jurisdiction of the court out of which the warrant issued and within the territorial jurisdiction of the officer executing the warrant.

E. Revised Missouri State Statute 542.291 – Search, when conducted—receipt for property taken:

1. The search shall be conducted in a reasonable manner. The search may be made at night if making it during the daytime is not practicable.

2. An officer making a search pursuant to an invalid warrant, the invalidity of which is not apparent on its face, may use such force as he would be justified in using if the warrant were valid.

3. The officer may summon as many persons as he deems necessary to assist him in executing the warrant. Such persons shall not be held liable as a result of the illegality of the search and seizure.

4. If any property is seized, the officer shall give to the person from whose possession it is taken, if he is present, a copy of the warrant and an itemized receipt of the property taken. If no person is present, the officer shall leave the copy and the receipt at the site of the search.

5. A copy of the itemized receipt of any property taken shall be delivered to the office of the prosecuting attorney in the county where the property was taken within two working days of the search.

F. Revised Missouri State Statute 542.266 – Search warrant defined –Who may issue:

1. A search warrant is a written order of a court commanding the search of a person, place or thing, and the seizure, photographing or copying of property found thereon or therein.

2. A search warrant may be issued by an appellate judge or by any judge of a court having original jurisdiction of criminal offenses within the territorial jurisdiction where the person, place, or movable or immovable thing to be searched is located at the time of the making of the application.
   L. 1974 S.B. 366 § 2) (1985) Circuit Judge of St. Louis City had no authority to issue a search warrant for an automobile in Greene County and warrant thus issued was invalid despite the "good faith" of the officer conducting the search.

This General Order supersedes all prior directives and orders inconsistent therewith.

BY ORDER OF:

Signature on File
Beth M. Andreski
Chief of Police
Effective Date: 3/13/2018
Revised: 1/14/2020
Revised: 1/26/2024
Expiration: Indefinite